

Terms of Service

SIGNIFICANT NOTIFICATION: RESOLUTION OF DISPUTES CONCERNING THESE PROVISIONS AND THE [brand] PLATFORM ARE GOVERNED BY COMPULSORY ARBITRATION AND A WAIVER OF REPRESENTATIVE ACTION RIGHTS AS SPECIFIED IN THE "OBLIGATORY ARBITRATION AND CLASS ACTION WAIVER" PARAGRAPH BELOW.

This Terms of Service (the "**Terms**") constitutes a formal legal contract between you and [brand], including its corporate partners, branches, and subsidiaries as updated periodically (collectively, "[brand]," "**Company**," "**we**," "**us**," and "**our**"). These provisions govern [brand]'s web platforms, mobile software, and other interactive digital services that display these Terms (collectively, the "**Services**").

By accessing or engaging with the Services, or by submitting or transferring any **User Content** (as defined below) to the platform, you, your successors, and assigns (collectively, "**you**") acknowledge that you have reviewed, understood, and consented to be legally bound by these Terms. If you disagree with these provisions, you possess no authorization to use or access the Services.

We reserve the right to alter these Terms at our discretion. Please review this page regularly for revisions. All modifications will be updated on the Services. If you cannot abide by or do not accept the revised Terms, you must cease use of the platform immediately. New Terms become active upon publication and apply prospectively, except as specified in the Mandatory Arbitration and Class Action Waiver section. Continuing to use the platform after updates signifies your legally binding consent to the changes.

Supplementary provisions may apply to specific interactions with the Services. Such terms will be shared with you or published near the relevant features; they are integrated into these Terms by reference. For instance, the [brand] **Privacy Policy** (detailing data collection, usage, and disclosure) is incorporated into and forms an integral part of these Terms.

1. QUALIFICATION AND JURISDICTION

1.1 Qualification. To utilize the Services, you represent and warrant that you are of legal age and possess full legal capacity. If using the Services for a third party, you confirm you are their authorized agent and that your use signifies that party's acceptance of these provisions. Access is prohibited if [brand] has previously banned you from the platform.

1.2 International Usage. [brand] operates and provides the Services from the United States. We make no claims regarding the suitability of the Services in other jurisdictions. Accessing the platform from outside the U.S. is done at your own discretion and risk; you are solely responsible for local law compliance.

2. OWNERSHIP RIGHTS

2.1 Intellectual Property. [brand] owns and manages the Services. The materials provided—derived from [brand], its partners, and other sources—are protected by U.S. copyright law, international treaties, trademarks, and other proprietary statutes. The platform is

also protected as a collective work under U.S. and international law. You agree to honor all copyright notices and legal restrictions. You acknowledge that the platform was created through significant time and financial investment and constitutes valuable intellectual property. You agree to protect these proprietary rights during and after the duration of these Terms and will comply with written requests from **[brand]** or its **Suppliers** to protect their contractual and common law interests. You must notify **[brand]** immediately of any unauthorized access or infringement claims. All global rights regarding trade secrets, patents, trademarks, and know-how remain the exclusive property of **[brand]**.

2.2 Usage of Marks. You are prohibited from using **[brand]**'s trademarks, logos, or service marks in a way that suggests unauthorized association or ownership. You acknowledge you possess no rights to these marks.

3. USER-PROVIDED CONTENT AND INPUT

3.1 User Content. The platform may allow you to submit or "post" materials such as videos, photos, reviews, and comments ("**User Content**"). You agree that the individual who originated the content is solely responsible for it, whether shared publicly or privately. You warrant that you hold all necessary rights to share such material without infringing on third parties.

3.2 Content Licensing. By posting User Content, you grant us a global, perpetual, irrevocable, royalty-free, and sub-licensable license to reproduce, modify, distribute, display, and publish said content in any format or media, current or future. This includes the right to use the content for platform promotion. Your user name may be linked to your submissions.

3.3 Content Warranties. You warrant that you own or control all rights to your User Content. You agree to indemnify and defend **[brand]** against all claims arising from your submissions. We reserve the right to assume exclusive defense of such claims at our own cost, and you agree to assist us.

3.4 Content Oversight. We may, at our discretion, screen User Content but we have no requirement to do so. We reserve the right to move, edit, or delete any content for any reason. We do not validate or sanction User Content; you assume all risks regarding its accuracy or utility. Under the **Communications Decency Act (47 U.S.C. § 230)**, **[brand]** is an interactive service provider and will not be treated as the publisher or speaker of information provided by third parties. You agree to follow the terms of any third-party services (e.g., Facebook, X) integrated into the platform.

3.5 User Input. Any data or ideas sent via email or other channels are non-confidential. We hold no obligation to protect this information and are free to use, distribute, or reproduce it for any purpose without restriction.

4. LICENSING AND RESTRICTED ACTIVITIES

4.1 Your License. Subject to your adherence to these Terms, we provide a limited, non-exclusive, non-transferable, and revocable right to access the Services for your personal, non-commercial use.

4.2 Forbidden Uses. Engaging in illegal acts or any use not explicitly authorized here is strictly prohibited. You agree not to:

- Post content that is abusive, harassing, threatening, or obscene;
- Post material that disparages others based on race, gender, religion, disability, or sexual orientation;
- Use the platform for commercial benchmarking or to aggregate data for competing products;
- Duplicate, download (excluding page caching required for private use, or as otherwise explicitly allowed by these Terms), alter, circulate, post, transfer, exhibit, perform, recreate, air, copy, issue, reissue, upload, authorize, deconstruct, develop derivative works from, or offer for purchase any material or other data found on or retrieved through the Services, via any method except as permitted in these Terms or with the prior written authorization of **[brand]**;
- Scrape, index, or copy platform information using automated tools (robots, spiders, crawlers) without manual browser access or an approved API;
- Circumvent robot exclusion headers or security measures;
- Post instructions for or advocate for criminal activities;
- Upload malicious code, viruses, or software designed to interrupt services, hardware or telecommunications;
- Post material that impedes or otherwise prohibits communication or disrupts user discussion;
- Post, utilize or otherwise make available any other party's intellectual property unless you have the right to do so, or remove or alter any copyright, trademark or other proprietary notice contained on the Services;
- Falsely represent your identity or institutional affiliation;
- Solicit sensitive data (passwords, credit card info) from other users;
- Post advertisements, spam, or engage in unauthorized commercial solicitations;
- Interfere with the usage or enjoyment of the Services by other parties.

We maintain absolute discretion to remove content, block access, or terminate accounts for violations.

5. REGULATORY ADHERENCE

You consent to **[brand]** accessing and disclosing your account data or User Content if required by law or in a good-faith belief that such action is necessary to: (1) comply with legal mandates; (2) enforce these Terms; (3) respond to infringement claims; or (4) protect the safety and rights of **[brand]**, its users, or the public.

6. EXTERNAL LINKS

We may provide links to third-party websites for your convenience. We do not control these sites and assume no responsibility for their content, accuracy, or quality. Links do not constitute an endorsement of the third party.

7. MOBILE PLATFORM PROVISIONS

Text-based services are governed by these Terms. **Note: Standard Message & Data Rates Apply.**

- **Contact:** Reach us using our “Contact Us” page.
- **Help:** Text **HELP** to **[SMS-phone]** or call **[phone]**.
- **Opt-Out:** Text **STOP** to **[SMS-phone]** to end SMS services.
- **Frequency:** Alerts are delivered at a rate of roughly 1 message per day. Carriers are not liable for undelivered or delayed messages.

8. GUARANTEES AND DISCLOSURES

YOU EXPRESSLY ACKNOWLEDGE AND CONSENT THAT:

- ALL PRODUCT WARRANTIES ARE PROVIDED SOLELY BY THE THIRD-PARTY MANUFACTURERS.
- THE SERVICES ARE PROVIDED "**AS IS**" AND "**AS AVAILABLE.**" DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.
- WE ARE NOT RESPONSIBLE FOR THE DELETION, MIS-DELIVERY, OR STORAGE FAILURE OF ANY USER DATA OR SETTINGS.
- ANY MATERIAL DOWNLOADED IS DONE AT YOUR OWN RISK; YOU ARE RESPONSIBLE FOR ANY RESULTING HARDWARE DAMAGE OR DATA LOSS.
- NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM **[brand]** OR THROUGH OR FROM THE SERVICES SHALL CREATE ANY WARRANTY.
- THE SERVICES DO NOT OFFER LEGAL OR MEDICAL ADVICE. CONSULT RELEVANT PROFESSIONALS FOR SUCH NEEDS.
- WE MAKE NO PROMISES THAT OUR PRODUCTS OR SERVICES WILL MEET YOUR REQUIREMENTS, OR THAT THEY WILL ACHIEVE ANY PARTICULAR RESULTS, INCLUDING EMPLOYMENT OPPORTUNITIES.
- WE WILL NOT BE RESPONSIBLE FOR ANY THIRD-PARTY CONTENT ON SERVICES, ANY LINKS TO THIRD-PARTY WEBSITES OR ANY THIRD-PARTY WEBSITES. WE DO NOT VET USERS WHO CLAIM TO BE EXPERTS ON THE PLATFORM.
- PACKAGING, LABELS AND INSTRUCTIONS MAY CONTAIN MANUFACTURER DISCLAIMERS AND LIMITATIONS OF LIABILITY THAT APPLY TO THE PRODUCTS YOU PURCHASE. **[brand]** MAKES ALL DISCLAIMERS IN THIS PARAGRAPH ON BEHALF OF ITSELF AND ITS LICENSORS AND SUPPLIERS.

9. LIMITATION OF LIABILITY

[brand] AND ITS REPRESENTATIVES, INCLUDING ITS RESPECTIVE OFFICERS, DIRECTORS, EMPLOYEES, MEMBERS, SHAREHOLDERS (AND ALL SUCCESSORS AND ASSIGNS OF ANY OF THE FOREGOING) SHALL NOT BE LIABLE FOR ANY INDIRECT, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING FROM THE USE OR INABILITY TO USE THE SERVICES. OUR TOTAL AGGREGATE LIABILITY SHALL NOT EXCEED THE AMOUNT PAID FOR THE RELEVANT SERVICE OR **\$100**, WHICHEVER IS GREATER. WE ARE NOT RESPONSIBLE FOR THE ILLEGAL OR OFFENSIVE CONDUCT OF THIRD PARTIES.

[brand] DOES NOT WARRANT, ENDORSE, GUARANTEE OR ASSUME RESPONSIBILITY FOR ANY PRODUCT OR SERVICE ADVERTISED OR OFFERED BY A THIRD PARTY THROUGH THE SERVICES OR ANY WEBSITE FEATURED OR LINKED TO THROUGH THE SERVICE, AND WE WILL NOT BE A PARTY TO OR IN ANY WAY BE RESPONSIBLE FOR MONITORING ANY TRANSACTION BETWEEN YOU AND THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES. **[brand]** WILL NOT BE LIABLE FOR THE OFFENSIVE OR ILLEGAL CONDUCT OF ANY THIRD PARTY. YOU VOLUNTARILY ASSUME THE RISK OF HARM OR DAMAGE FROM THE FOREGOING. THE FOREGOING LIMITATIONS WILL APPLY EVEN IF A REMEDY FAILS OF ITS ESSENTIAL PURPOSE AND TO THE FULLEST EXTENT PERMITTED BY LAW.

California Notice: Residents of California waive **California Civil Code §1542**, releasing claims—including those related to criminal acts—that are currently unknown or unsuspected.

10. INDEMNIFICATION

You agree to defend and hold **[brand]**, including its respective officers, directors, employees, members, shareholders, or representatives ITS (and all successors and assigns of any of the foregoing), harmless against any third-party claims or legal fees arising from your use of the Services, your violation of these Terms or the Privacy Policy, or your infringement of any rights of another party. We reserve the right to assume the exclusive defense and control of such disputes, and you will cooperate with us in asserting any available defenses.

11. ADVERTISERS

Transactions or interactions with advertisers found on the Services are strictly between you and said advertiser. **[brand]** is not liable for any losses resulting from such dealings.

12. THIRD-PARTY SERVICES AND AFFILIATES

The Services may contain affiliate marketing links. We may earn a commission if you make a purchase through these links. We are not liable for the availability, content, or data-handling practices of external resources or sites. Your interactions with them are governed by their own specific policies.

13. SERVICE CHANGES AND ACCOUNT TERMINATION

13.1 Modification. We reserve the right to modify or end the Services at any time without notice. You agree that we shall not be liable to you or any third party for any modification, suspension or discontinuance of the Services.

13.2 Termination. We may revoke your access for any reason, including: (a) Terms violations; (b) law enforcement requests; (c) security issues; (d) account inactivity; or activities related to protecting the rights, property or safety of **[brand]**, its agents and affiliates, its users and the public. Upon termination, your rights to the Services end immediately, though legal provisions (like Arbitration) remain in effect. Termination of your account may also include, at our sole discretion, the deletion of your account and/or User Content.

14. OBLIGATORY ARBITRATION AND CLASS ACTION WAIVER

EXCEPT WHERE STATUTORILY FORBIDDEN, ALL DISPUTES BETWEEN YOU AND THE COMPANY (INCLUDING ITS AGENTS AND AFFILIATES) RELATING TO THE SERVICES, MATERIALS, OR OUR RELATIONSHIP SHALL BE RESOLVED THROUGH BINDING ARBITRATION.

- **Individual Capacity:** Claims must be brought individually, not as a plaintiff or class member in any representative proceeding.
- **Jury Waiver:** Both parties waive the right to a trial by jury.
- **Procedures:** Arbitration will be managed by the **American Arbitration Association (AAA)** under its Commercial and Consumer rules. It will occur in **Miami, FL**, but claims under \$2,500 may be handled by phone.
- **Governing Law:** This agreement is governed by the **Federal Arbitration Act (FAA)**. Judgments may be entered in Florida state or federal courts.
- **Non-Severability:** If the Class Action Waiver is found unenforceable, the entire arbitration agreement becomes void.

15. FAIR CREDIT REPORTING ACT (FCRA) COMPLIANCE

[brand] IS NOT A CREDIT REPORTING AGENCY ("CRA") UNDER THE FCRA (15 USC § 1681 ET SEQ.).

You are strictly prohibited from using our data to evaluate a person's suitability for:

- Employment or household staff hiring;
- Credit, loans, or insurance;
- Education or scholarships;
- Housing or rentals;
- Benefits, privileges or services provided by any business establishment.

You agree not to take any "**adverse action**" (as defined by the FCRA) based on our information. You warrant that you have sufficient knowledge of the FCRA to comply with these restrictions.

16. WEBSITE ORDERS

All transactions are subject to Company acceptance. After your order has been placed, we will provide you with an email confirming our acceptance of your order. We may cancel or refuse orders for any reason, including payment errors or suspected fraud. If you do not receive confirmation that your order has been placed, please contact our Customer Service Department at **[phone]**. Some reasons we may cancel an order include, but are not limited to, the following:

- **Billing Errors:** Incorrect credit card data, insufficient funds, or prepaid card usage may result in order rejection.
- **Fraud:** We reserve the right to cancel orders linked to previous fraudulent activity or credit card disputes.

The Company reserves the right to accept an Order if the billing or payment information is incorrect, invalid or ineligible as described above.

17. SUBSCRIPTION PLANS AND BILLING

17.1 Standard Plans.

- **Trial:** A 5-day trial for \$1.00. If not cancelled, you are billed **[price]** monthly until termination. Billing occurs exactly 120 hours after registration. If your payment for a full term is declined due to insufficient funds, the Company reserves the right to bill in installments based on the monthly rates associated with the Membership Plan you selected. If you fail to make any scheduled payment for a Membership Plan, the Company may, in its sole discretion, terminate your membership in the Membership Plan.

You acknowledge and agree that the company will not obtain additional authorization from you for each recurring fee. You also agree that the company will not be liable for overdraft charges or fees which you might incur as a result of your membership plan.

- **17.2 Non-Standard Plans.** Promotional rates will be billed at the frequency and price disclosed during enrollment.
- **17.3 Authorization.** By subscribing, you authorize recurring charges to your payment method without further notice. You acknowledge this involves a **negative option** and you are responsible for future payments unless you cancel.

For the most up-to-date pricing and Membership Plan descriptions, please go to **[domain]**. We reserve the right to modify the prices charged for the Membership Plans, or to add or remove any Membership Plans, from the Website at any time without prior notice to you. Content on the Site, as well as various services, whether offered by **[brand]**, third-party Service Providers or others, may require additional fees. Price quotes provided to you prior to any price modification shall be honored.

18. CANCELLATION

You may end your membership at any time by calling **[phone]** or via our "[Contact Us](#)" page. Any cancellation request will result in the cancellation of any upcoming billings associated with your Membership Plan. We suggest you make a record of your cancellation confirmation number for future reference. If you do not receive a cancellation confirmation number, then your account was not canceled. All service fees are non-refundable

19–23. PAYMENT LOGISTICS

- **Taxes:** Orders are subject to state taxes based on residency.
- **Discounts And Promotions:** Any applicable discounts or promotional prices will be noted at the time of purchase on the checkout page for your order.
- **Billing Errors:** Notify us from our "[Contact Us](#)" page immediately if you suspect an error.
- **Reversals and Chargebacks:** We treat chargebacks and reveals as potential service theft and may file complaints with federal or local authorities. We monitor IP addresses and activity for this purpose.
- **Currency:** All fees are in USD.

REMOVING YOUR INFORMATION

You may request data removal via our [Opt-Out Page](#).

PERFORMANCE AND DISCLAIMERS

We use commercially reasonable efforts to provide information "**AS IS**." Data is sourced from third parties and may be inaccurate or incomplete. Criminal records may include expunged or sealed data if not yet updated in our sources. You understand that you may be restricted from accessing certain information and services which may be otherwise available. We reserve the right to add materials and features to, and to discontinue offering any of the materials and features that are currently a part of its Background Information Services.

26. DMCA COMPLIANCE

We respond to copyright infringement notices according to the **Digital Millennium Copyright Act**. Responses may include removing or disabling access to material claimed to be the subject of infringing activity and/or terminating subscribers. If we remove or disable access in response to such a notice, we will make a good-faith attempt to contact the owner or administrator of the affected site or content so that they may make a counter notification pursuant to sections 512(g)(2) and (3) of that Act. It is our policy to document all notices of alleged infringement on which we act. Please send all written communications relating to copyright issues to:

[brand] ATTN: DMCA Complaints, [address].

Notification Requirements: Your notification must contain substantially all of the following components:

- * A physical or electronic signature of an individual authorized to act on behalf of the proprietor of an exclusive right that is allegedly violated.
- * Detailed identification specifying the location of the copyrighted work that you believe has been infringed (for example, "The copyrighted work at issue is the text that appears on [<https://www.website.com/page.html>](<https://www.website.com/page.html>")) or other information sufficient to identify the copyrighted creation being infringed. If multiple copyrighted works at a single online platform are encompassed by a single notice, a representative list of those works at that web address.
- * Identification of the specific material that is claimed to be infringing or to be the focus of infringing activity, which is to be purged or access to which is to be deactivated, alongside data reasonably sufficient to allow us to find the material.
- * Information reasonably sufficient to allow us to contact the complaining party, such as a mailing address, telephone number, and, if available, an electronic mail address where the reporting party may be reached.
- * The following statement: "I have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law."
- * The following statement: "I swear, under penalty of perjury, that the information in the notification is accurate, and that I am the copyright owner or am authorized to act on behalf of the owner of an exclusive right that is allegedly infringed."

COUNTER NOTIFICATION

The administrator of an impacted site or the provider of disputed content may submit a counter notification pursuant to sections 512(g)(2) and (3) of the Digital Millennium Copyright Act. Upon our receipt of a valid counter notification, we may restore the material in question.

To lodge a counter notification with us, you must submit a written document (via fax or regular mail — not by email, unless through a prior agreement) that provides the details specified below. Please note that you will be held liable for damages (including legal costs and attorneys' fees) if you materially misrepresent that a product or activity does not infringe the copyrights of others. Consequently, if you are uncertain whether specific material infringes third-party copyrights, we recommend that you first consult an attorney.

To accelerate our ability to process your counter notification, please utilize the following format (including section numbers). Your communication must contain substantially the following items:

- A physical or digital signature of the subscriber.

- Clear identification of the material that was removed or to which access was restricted, alongside the location where the material was displayed before it was deleted or disabled.
- A statement under penalty of perjury that you possess a good faith belief that the material was purged or disabled due to a mistake or misidentification of the material.
- Your legal name, physical address, and telephone number.
- The following exact statement: **"I consent to the jurisdiction of the Federal District Court for the judicial district in which your address is located, (or Miami-Dade County, Florida if your address is outside of the United States), and that I will accept service of process from the person who provided notification under subsection (c)(1)(C) or an agent of such person."**
- The following exact statement: **"I swear, under penalty of perjury, that I have a good faith belief that the affected material was removed or disabled as a result of a mistake or misidentification of the material to be removed or disabled."**

ACCOUNT TERMINATION

We will, under appropriate conditions, terminate the accounts of repeat infringers. If you suspect that an account holder or subscriber is a repeat infringer, please follow the steps outlined above to contact our designated DMCA agent and supply information sufficient for us to verify that the account holder or subscriber fits this description.

27. ELECTRONIC SIGNATURE

Agreeing to this contract digitally constitutes a binding electronic signature under the **U.S. E-Sign Act**. You consent to receive all notices and transaction records electronically.

28–29. GENERAL PROVISIONS

- **Governing Law:** Interpreted under **Florida law**.
- **Force Majeure:** We are not liable for delays caused by events beyond our control.
- **Assignment:** You may not delegate your rights; **[brand]** may assign its rights without restriction.
- **Entire Agreement:** These Terms constitute the total agreement between the parties, superseding all prior versions. If you are using the Services for or on behalf of the U.S. government, your license rights do not exceed those granted to non-government consumers.
- **Notices:** We may deliver notice to you by e-mail, posting a notice on the Services or any other method we choose and such notice will be effective on dispatch. If you give notice to us, it will be effective when received and you must use the following physical address

30. CONTACT INFORMATION

For inquiries regarding these notices or to exercise your rights, please contact:

- Email: [\[website/contact\]](#)
- Mailing Address: [\[address\]](#)